

HOUSE No. 1822

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to harassment prevention orders.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>

HOUSE No. 1822

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 1822) of Michael P. Kushmerek relative to harassment prevention orders. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to harassment prevention orders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 258E of the General Laws is hereby amended by inserting after
2 Section 12 the following new sections:

3 Section 13. If a plaintiff's physical condition may prevent them from appearing in court,
4 either permanently or within the ten court business days in which the hearing after notice will
5 occur, the court, in its discretion, may conduct the hearing by speakerphone or video. The court
6 should conduct the hearing in the courtroom so that the hearing will be recorded.

7 Section 14. If in-hand service cannot be made because of lack of knowledge of the
8 defendant's whereabouts, evidence that the defendant is avoiding service, or for any other
9 reason, a judge, upon finding that the appropriate law enforcement agency has made a
10 conscientious and reasonable effort to effect service, but has nevertheless failed, can authorize
11 service by alternative means.

12 SECTION 2. Chapter 209A of the General Laws is hereby amended by inserting after
13 Section 11 the following new section:

14 Section 12. If in-hand service cannot be made because of lack of knowledge of the
15 defendant's whereabouts, evidence that the defendant is avoiding service, or for any other
16 reason, a judge, upon finding that the appropriate law enforcement agency has made a
17 conscientious and reasonable effort to effect service, but has nevertheless failed, can authorize
18 service by alternative means.